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PROBLEMATIKA HUKUM

| ISSN (Print) 2477-1198 | ISSN (Online) 2503-4812 |



The Legal Invalidity of AI-Generated Modifications in Digital Illustration: Navigating Creativity and Copyright Boundaries

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Article	Abstract
Keywords: <i>Artificial Intelligence; Copyright Law; Digital Illustration.</i> Article History Received: Received: Jan, 15, 2026 Reviewed: Jan, 30, 2026 Accepted: Feb, 18, 2026 Published: Apr, 30, 2026	This study examines the legal invalidity of AI-driven modifications of digital illustrations, focusing on the dilemma between creativity and copyright infringement. This research examines whether AI-generated or AI-modified artworks can be recognized as legitimate creative works under Indonesian copyright law. This study adopts a normative juridical method, incorporating statutory, conceptual, and case approaches, drawing on Law No. 28 of 2014 on Copyright and relevant scholarly literature. The results show that artificial intelligence cannot be recognized as a legal subject capable of holding copyright. AI-generated modifications are fundamentally derivative works produced from existing datasets, often without the consent of original creators. Such practices violate both moral rights, including the right to integrity and attribution, and economic rights related to adaptation and distribution. Furthermore, the lack of transparency in AI systems complicates accountability and blurs the boundary between inspiration and imitation. In conclusion, AI-based modifications of digital illustrations cannot be considered legally valid or ethically justified. Without proper regulation and protection mechanisms, such practices risk undermining copyright principles, harming artists' rights, and weakening the sustainability of the creative industry.

1. INTRODUCTION

The continuous progress of artificial intelligence (AI) is driving major changes across different sectors, particularly influencing the evolution of the creative industry. One of the most prominent innovations is text-to-image generative AI, a system capable of converting user-provided textual descriptions into visual representations automatically.¹ This technology enables individuals to produce digital illustrations simply by entering basic text prompts, without requiring manual drawing skills. According to research conducted by Every pixel Journal, millions of digital images are generated daily through such systems, and within only 1.5 years since its emergence, generative AI has produced more than 15 billion images, an amount that remarkably equals the total number of photographs created by humans during the first 150 years of photography.² This phenomenon reflects a fundamental shift in the production of digital illustrations, from a process that once relied heavily on specialized skills and artistic experience to one that is now instantaneous and algorithm-driven.

Generative AI operates through training on large-scale visual datasets, learning probabilistic patterns, styles, and visual characteristics from existing works.³ Through this process, AI is able to recognize relationships between text and images and generate outputs that resemble the original data. Technologies such as diffusion models and neural networks further enable AI to combine various visual elements into seemingly new and cohesive images. However, behind this technological sophistication lies a fundamental issue: AI does not create works independently, but instead processes and recombines pre-existing data. As a result, AI-generated outputs are inherently derivative in nature.

A critical concern arises from the fact that the datasets used to train AI systems are often sourced from artworks created by human artists without explicit consent, licensing, or compensation. A survey by the National Association for the Visual Arts (NAVA) indicates that more than 80% of artists perceive this technology as a threat to their moral rights and livelihoods.⁴ This situation raises serious issues regarding the protection of intellectual

¹ Zahra, A. A. M., & Sudarwanto, A. S., "Digital Illustration amid Copyright Infringement Threats by AI," *Indonesian Journal of Social Sciences and Humanities*, 2025.

² Everypixel Journal, "AI Image Statistics: How Much Content Was Created by AI?" (2023).

³ Dana, G. W. P. et al., *Generative Artificial Intelligence: Theory, Models, and Implementation* (PT Star Digital Publishing, 2026).

⁴ National Association for the Visual Arts (NAVA), "Artists Call for Consent and Compensation in AI Training" (2025).

property rights and the recognition of human creative labor. Moreover, the lack of transparency in AI systems complicates questions of accountability, ownership, and responsibility for generated outputs.⁵ Consequently, a fundamental question emerges: can AI-generated or AI-modified illustrations be recognized as a legitimate form of creativity?

Given that Indonesia positions the creative economy as a key pillar of national development, protecting local artists from the threats posed by AI becomes a crucial issue of digital sovereignty. Although AI is often framed as a driver of innovation, in practice, AI-modified works pose more legal and ethical problems than they do legitimacy concerns. Therefore, from legal, ethical, and societal perspectives, AI-based modifications of digital illustrations cannot be considered valid as original creative works.

2. RESEARCH METHODOLOGY

The research adopts a normative juridical approach, examining legal principles and regulatory frameworks governing copyright in the context of artificial intelligence.⁶ In conducting this research, both statutory and conceptual approaches are utilized. The statutory approach involves an examination of applicable legal provisions, especially those set out in Law No. 28 of 2014 on Copyright,⁷ while the conceptual approach explores legal doctrines and scholarly opinions concerning authorship, originality, and intellectual property protection concerning works generated by artificial intelligence.

This research relies on secondary data, including primary legal sources such as statutes, as well as secondary materials from academic journals, books, and relevant reports. Data collection is carried out through a literature review of legal documents and scholarly publications on AI and copyright issues.

The analysis is conducted qualitatively by interpreting legal provisions and comparing them with existing theories and practices regarding AI-generated and AI-modified works. This method aims to determine the legal validity of AI-based modifications of digital illustrations and to assess whether such works can be recognized as legitimate creations under Indonesian copyright law.

⁵ Dana, G. W. P. et al., op.cit., p. 88.

⁶ Rohman et al., "Methodological Reasoning Finds Law Using Normative Studies," *Maqasidi: Jurnal Syariah dan Hukum*, 2024.

⁷ Indonesian Copyright Law (Law No. 28 of 2014).

3. DISCUSSION

3.1 Legal Status of Artificial Intelligence as a Subject of Law

The assumption that AI-based modified works are legally valid must be critically questioned. Within the framework of Indonesian law, this issue is closely related to the concept of legal subjectivity, which recognizes an entity as having the capacity to hold rights and assume legal obligations.⁸ Under Indonesian law, only natural persons (*natuurlijk persoon*) and legal entities (*rechtspersoon*) are recognized as legal subjects.⁹

Since copyright originates from human intellectual capability, artificial intelligence does not meet the criteria for recognition as a copyright holder.¹⁰ As a non-legal subject, AI lacks legal capacity and therefore cannot own or exercise rights. Consequently, any claim of authorship attributed to AI lacks legal standing under Indonesian copyright law.¹¹

3.2 Copyright Protection and the Illegality of AI-Based Modifications

Indonesian Copyright Law clearly provides that copyright is granted exclusively to creators who produce works with distinctive characteristics.¹² This protection is rooted in the recognition of personal expression, experience, and creativity embodied in each work. Therefore, creators are provided with exclusive rights to regulate the use and alteration of their works. These rights include both moral and economic rights. Moral rights protect the integrity and attribution of the creator, while economic rights cover the use, adaptation, and distribution of the work.¹³ Unauthorized modification of a digital illustration, including through AI, constitutes a direct violation of these rights. Article 5 of the Copyright Law protects the creator's right to maintain the integrity of their work, while Article 9 provides exclusive rights over transformation and distribution. Thus, AI-based modifications without consent are legally invalid and constitute copyright infringement.

⁸ Reza, "Legal Subjects in Indonesian Civil Law" (2022).

⁹ Ibid.

¹⁰ Law of the Republic of Indonesia No. 28 of 2014 on Copyright.

¹¹ Karimullah, M. Z., Putri, R. W., & Rohaini, R., "Hak Cipta atas Hasil Tulisan Kecerdasan Artifisial: Tinjauan Etika Kekayaan Intelektual dan Status Kepemilikannya," *AKADEMIK: Jurnal Mahasiswa Humanis*, Vol. 5, No. 2 (2025), pp. 1079-1094; Sukmaningsih, "Copyright Issues in Artificial Intelligence Works" (2024).

¹² N. K. Sari Gayatri and H. Halif, "Kepastian Hukum Perlindungan Pemilik Hak Cipta Atas Penggunaan Karya Oleh Artificial Intelligence (AI)," *Al-Zayn : Jurnal Ilmu Sosial & Hukum* 3, no. 5 (2025), pp. 7237-7250. <https://doi.org/10.61104/alz.v3i5.2361>.

¹³ Ibid.

3.3 Ethical Issues and Lack of Accountability in AI Systems

Beyond legal considerations, the invalidity of AI-modified works is also grounded in ethical concerns. AI is often framed as a tool for efficiency; however, for the creative community, it represents a disruptive force that threatens their existence.¹⁴ The use of artificial intelligence challenges the distinction between inspiration and imitation, giving rise to concerns regarding fairness and originality. Moreover, AI systems often function as opaque “black boxes,” making their decision-making processes difficult to understand and trace. This limited transparency creates challenges in determining accountability, especially in cases involving copyright infringement. Without clear attribution or responsibility, the fundamental principle of accountability in intellectual creation is weakened.

3.4 Impact on the Sustainability of the Creative Industry

The validation of AI-modified works without a strict ethical framework risk undermining the sustainability of the creative industry. If algorithmic efficiency is valued more than human creativity, the regeneration of artistic talent may decline significantly.

Such conditions could weaken the foundation of the creative economy, particularly in Indonesia, where the sector is positioned as a key pillar of national development. Therefore, AI cannot be considered a legitimate innovation if it continues to undermine the moral and economic rights of human creators.

3.5 Case Study: Imitation of Visual Style and the Ghibli Phenomenon

The issue becomes more evident when examining the imitation of distinctive artistic styles, such as the Studio Ghibli phenomenon. This is not merely a technical matter but an ethical dilemma involving visual plagiarism. Studies show that AI systems capable of replicating artistic styles create significant conflicts between innovation and originality.¹⁵

Hayao Miyazaki, strongly criticized the use of artificial intelligence in art, describing it as “an insult to life itself.”¹⁶ This perspective emphasizes that authentic artistic creation is fundamentally grounded in human experience and emotional depth, elements that cannot be

¹⁴ Gayatri, A. Z. C., Sari, N. K., & Halif, H., “Kepastian Hukum Perlindungan Pemilik Hak Cipta atas Penggunaan Karya oleh Artificial Intelligence (AI),” *Al-Zayn: Jurnal Ilmu Sosial & Hukum*, Vol. 3, No. 5 (2025), pp. 7237-7250.

¹⁵ Mughiroh, A. F., & Munawara, “Dilema Etis Penggunaan Gaya Visual Ghibli oleh Teknologi AI,” *Spektra Komunika*, Vol. 4, No. 2 (2025), pp. 140-151.

¹⁶ Evans, G., “Hayao Miyazaki’s ‘Disgusted’ Thoughts on AI Resurface Following Studio Ghibli Trend,” *The Independent*, 28 March 2025.

reproduced by algorithmic systems.

From a technical perspective, such practices fall under Mimetic AI Systems, which operate by imitating visual identities to produce similar outputs.¹⁷ This approach fails to meet the standard of originality and reduces art into mere statistical reproduction.¹⁸ In Indonesia, this practice is considered a misuse of technology that contradicts the originality principle under the Copyright Law.¹⁹

Furthermore, the commercialization of AI-generated works that imitate specific styles raises ethical and economic concerns, as it exploits the reputations of original creators without their consent or compensation.²⁰ Therefore, AI-modified works cannot be considered valid, as they violate both legal and ethical principles.

2. CONCLUSION

The exploitation of existing digital illustrations through artificial intelligence cannot be normalized or justified under any circumstances. If such practices continue to be tolerated, the fundamental principles of copyright protection will gradually erode, ultimately weakening artists' position as the rightful creators of their works. This condition creates a harmful precedent in the creative industry, in which works can be easily appropriated, modified, and redistributed without consent or accountability.

The long-term consequences extend beyond economic losses, as they also risk diminishing artists' motivation to create because of inadequate legal protection. Therefore, the issue of AI-based modification must not be viewed merely as a technological advancement, but rather as a serious legal and ethical concern. In this regard, AI-generated or AI-modified works should not be regarded as legitimate where they infringe upon the moral and economic rights of original creators and compromise the integrity of artistic expression.

¹⁷ Bukiingolts, N., "Mimetic AI Systems: Understanding and Regulating the Use of Generative Models for Impersonation," *Proceedings of the Eighth AAAI/ACM Conference on AI, Ethics, and Society (AIES 2025)* (University of Florida, 2025).

¹⁸ Darmawan, A. J., Jeong, M.-S., & Kim, H.-K., "Studio Ghibli: Counter IP Perspective on Visual Styles Generated by AI Image Generators," *Jurnal Desain*, Vol. 13, No. 2 (2026), pp. 450-458.

¹⁹ Lofi, M. R., "Penyalahgunaan Teknologi AI dalam Peniruan Gaya Seni Studio Ghibli: Perspektif Hak Cipta di Indonesia," *Journal UII* (2024).

²⁰ Hakim, A. R., "Buying and Selling Transactions of Artificial Intelligence Work that Imitate Studio Ghibli's Style," *Al-Kharaj: Jurnal Ekonomi, Keuangan & Bisnis Syariah* (2024).

3. RECOMMENDATIONS

In line with recent scholarly findings, strengthening regulatory frameworks and improving digital literacy are essential to ensure that the use of artificial intelligence does not violate ethical standards or copyright law.²¹ The government must adopt a more proactive and responsive approach in addressing the rapid development of AI, particularly in protecting affected parties such as artists. Rather than focusing solely on technological innovation, it is crucial to maintain a balance between innovation and copyright protection.

This can be achieved through the development of more explicit and adaptive regulations governing the use of AI in the creative industry, as existing legal frameworks remain insufficient to address the complexity of these issues. In addition, greater efforts are needed to develop digital ecosystems equipped with anti-AI scraping protection systems to safeguard artistic works from unauthorized use in AI training datasets.

Such protective measures have already begun to emerge through technologies such as Glaze and Nightshade, which are designed to prevent visual works from being recognized and exploited by AI systems without significantly altering their appearance. The government should support these innovations through research funding, incentives for developers, and collaboration with industry stakeholders and academic institutions to establish comprehensive digital protection standards.

Equally important is the need to enhance public awareness through education on the importance of copyright compliance in the digital era. As a trusted authority, the government plays a key role in shaping public understanding of the boundaries between innovation, inspiration, and copyright infringement. With appropriate policy interventions and collaborative efforts, it is expected that a fair, ethical, and sustainable digital ecosystem can be established, one that ensures the protection of both the moral and economic rights of creators amid rapid technological developments.

²¹ Mughiroh, A. F., & Munawara. (2025). DILEMA ETIS PENGGUNAAN GAYA VISUAL GHIBLI OLEH TEKNOLOGI AI. *SPEKTRA KOMUNIKA*, 4(2), 140-151. <https://doi.org/10.33752/spektra.v4i2.9009>

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